

1 ENGROSSED HOUSE AMENDMENT
TO
2 ENGROSSED SENATE BILL NO. 1325 By: Coleman of the Senate
3 and
4 Hasenbeck and Hefner of the
5 House
6
7 [Protection from Domestic Abuse Act - victim
8 protective orders - Global Positioning System (GPS)
9 device - costs - monitoring - effective date]
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11 AMENDMENT NO. 1. Strike the stricken title, enacting clause, and
12 entire bill and insert:
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14 "An Act relating to domestic abuse; amending 22 O.S.
15 2021, Section 60.17, which relates to the Protection
16 from Domestic Abuse Act; providing exception to
17 certain court order; requiring defendants released on
18 bond to use a Global Positioning System (GPS) device;
19 requiring costs of device to be paid by the
20 defendant; providing an exception; directing the
21 Department of Corrections to provide list of GPS
22 monitoring programs or systems; providing for the
23 removal of GPS devices under certain circumstances;
24 authorizing victims to monitor the location of
defendants via computer- or cellular-generated
signals; and providing an effective date.
BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. AMENDATORY 22 O.S. 2021, Section 60.17, is
2 amended to read as follows:

3 Section 60.17. A. The court shall consider the safety of any
4 and all alleged victims of domestic violence, stalking, harassment,
5 sexual assault, or forcible sodomy where the defendant is alleged to
6 have violated a protective order, committed domestic assault and
7 battery, stalked, sexually assaulted, or forcibly sodomized the
8 alleged victim or victims prior to the release of the alleged
9 defendant from custody on bond. The court, after consideration and
10 to ensure the safety of the alleged victim or victims, may issue an
11 emergency protective order pursuant to the Protection from Domestic
12 Abuse Act. The court may also issue to the alleged victim or
13 victims an order restraining the alleged defendant from any activity
14 or action from which ~~they~~ he or she may be restrained under the
15 Protection from Domestic Abuse Act. The court shall not consider a
16 "no contact order as condition of bond" as a factor when determining
17 whether the petitioner is eligible for relief. The protective order
18 shall remain in effect until either a plea has been accepted,
19 sentencing has occurred in the case, the case has been dismissed, or
20 until further order of the court dismissing the protective order.
21 In conjunction with any protective order or restraining order
22 authorized by this section, the court may order the defendant to use
23 an active, real-time, twenty-four-hour Global Positioning System
24 (GPS) monitoring device for such term as the court deems

1 appropriate. Upon application of the victim, the court may
2 authorize the victim to monitor the location of the defendant. Such
3 monitoring by the victim shall be limited to the ability of the
4 victim to make computer or cellular inquiries to determine if the
5 defendant is within a specified distance of locations, excluding the
6 residence or workplace of the defendant, or to receive a computer-
7 or a cellular-generated signal if the defendant comes within a
8 specified distance of the victim. The court shall conduct an annual
9 review of the monitoring order to determine if such order to monitor
10 the location of the defendant is still necessary. Before the court
11 orders the use of a GPS device, the court shall find that the
12 defendant has a history that demonstrates an intent to commit
13 violence against the victim, including, but not limited to, prior
14 conviction for an offense under the Protection from Domestic Abuse
15 Act or any other violent offense, or any other evidence that shows
16 by a preponderance of the evidence that the defendant is likely to
17 commit violence against the victim. The court may further order the
18 defendant to pay costs and expenses related to the GPS device and
19 monitoring, unless the court finds the defendant indigent, and in
20 that event may order an alternative payment fund, county services
21 fund, or other condition in lieu of payment, if available.

22 B. 1. In addition to monitoring by the victim pursuant to
23 subsection A of this section, the court may order any defendant
24 charged with domestic abuse by strangulation, domestic abuse with a

1 dangerous or deadly weapon, or domestic abuse after a previous
2 adjudication for domestic abuse to not be released on bail without
3 GPS monitoring. The cost of the monitoring device and monitoring
4 service shall be paid by the defendant at his or her own expense
5 until the conclusion of the criminal case, unless the court finds
6 the defendant indigent, and in that event may order an alternative
7 payment fund, county services fund, or other condition in lieu of
8 payment, if available. The Department of Corrections shall provide
9 a list of appropriate GPS monitoring programs or systems for use by
10 the courts and provide minimum requirements for jurisdictions that
11 do not use the programs on the list. At the conclusion of the
12 criminal case, the court shall order the removal of the GPS
13 monitoring device if the defendant is acquitted, is to be
14 incarcerated, the case is dismissed or as determined by the court.

15 2. Upon application of the victim, the court may authorize the
16 victim to monitor the location of the defendant by receiving a
17 computer- or cellular-generated signal if the defendant is within a
18 specified distance of the residence or workplace of the victim.

19 SECTION 2. This act shall become effective November 1, 2026."
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1 Passed the House of Representatives the 28th day of April, 2026.

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4 Presiding Officer of the House of
Representatives
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6 Passed the Senate the ____ day of _____, 2026.

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9 Presiding Officer of the Senate
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1 ENGROSSED SENATE
2 BILL NO. 1325

By: Coleman of the Senate

3 and

4 Hasenbeck and Hefner of the
5 House

6
7 [Protection from Domestic Abuse Act - victim
8 protective orders - Global Positioning System (GPS)
9 device - costs - monitoring - effective date]
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11 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

12 SECTION 3. AMENDATORY 22 O.S. 2021, Section 60.17, is
13 amended to read as follows:

14 Section 60.17. A. The court shall consider the safety of any
15 and all alleged victims of domestic violence, stalking, harassment,
16 sexual assault, or forcible sodomy where the defendant is alleged to
17 have violated a protective order, committed domestic assault and
18 battery, stalked, sexually assaulted, or forcibly sodomized the
19 alleged victim or victims prior to the release of the alleged
20 defendant from custody on bond. The court, after consideration and
21 to ensure the safety of the alleged victim or victims, may issue an
22 emergency protective order pursuant to the Protection from Domestic
23 Abuse Act. The court may also issue to the alleged victim or
24 victims an order restraining the alleged defendant from any activity

1 or action from which ~~they~~ he or she may be restrained under the
2 Protection from Domestic Abuse Act. The court shall not consider a
3 "no contact order as condition of bond" as a factor when determining
4 whether the petitioner is eligible for relief. The protective order
5 shall remain in effect until either a plea has been accepted,
6 sentencing has occurred in the case, the case has been dismissed, or
7 until further order of the court dismissing the protective order.
8 In conjunction with any protective order or restraining order
9 authorized by this section, the court may order the defendant to use
10 an active, real-time, twenty-four-hour Global Positioning System
11 (GPS) monitoring device for such term as the court deems
12 appropriate. Upon application of the victim, the court may
13 authorize the victim to monitor the location of the defendant. Such
14 monitoring by the victim shall be limited to the ability of the
15 victim to make computer or cellular inquiries to determine if the
16 defendant is within a specified distance of locations, excluding the
17 residence or workplace of the defendant, or to receive a computer-
18 or a cellular-generated signal if the defendant comes within a
19 specified distance of the victim. The court shall conduct an annual
20 review of the monitoring order to determine if such order to monitor
21 the location of the defendant is still necessary. Before the court
22 orders the use of a GPS device, the court shall find that the
23 defendant has a history that demonstrates an intent to commit
24 violence against the victim, including, but not limited to, prior

1 conviction for an offense under the Protection from Domestic Abuse
2 Act or any other violent offense, or any other evidence that shows
3 by a preponderance of the evidence that the defendant is likely to
4 commit violence against the victim. The court may further order the
5 defendant to pay costs and expenses related to the GPS device and
6 monitoring.

7 B. 1. Any defendant charged with domestic abuse by
8 strangulation, domestic abuse with a dangerous or deadly weapon, or
9 domestic abuse after a previous adjudication for domestic abuse
10 shall not be released on bail without GPS monitoring. The cost of
11 the monitoring device and monitoring service shall be paid by the
12 defendant at his or her own expense until the conclusion of the
13 criminal case. The Department of Corrections shall provide a list
14 of appropriate GPS monitoring programs or systems for use by the
15 courts and provide minimum requirements for jurisdictions that do
16 not use the programs on the list. At the conclusion of the case,
17 the court shall order the removal of the GPS monitoring device if
18 the defendant is acquitted, incarcerated, or the case is dismissed.

19 2. Upon application of the victim, the court may authorize the
20 victim to monitor the location of the defendant by receiving a
21 computer- or cellular-generated signal if the defendant comes within
22 a specified distance of the victim.

23 SECTION 4. This act shall become effective November 1, 2026.
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1 Passed the Senate the 24th day of March, 2026.

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4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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9 Presiding Officer of the House
10 of Representatives